# The Second Monopoly

*The Patent Expired. The Exclusion Didn't*
*and It Doubled the Cost of American Living.*
*By Roleigh Martin, Foreword by Gord Magill*

**The book in brief:**

Written in 1787, over two years before the first patent law, the Clause in the Constitution "securing for limited Times to Authors and Inventors the exclusive Right" limits exclusivity secured by any means. For inventions, it states Jefferson's Bargain: an inventor holds the sole right to make a thing for a limited time, and when the time ends anyone may make it. For 183 years no second federal power crossed that limit.

Since 1970, federal energy, emissions and safety standards written for new designs make a faithful remake impossible. The exclusion outlives the patent and reaches an estimated 58 percent of what households buy, once designs are 20 or more years old.

Three authorities name that exclusion a monopoly. The Clause secures "the exclusive Right," measured by the public it shuts out. Coke defined a monopoly as an allowance by which others are "restrained of any freedom or liberty that they had before." In Continental Paper Bag Co. v. Eastern Paper Bag Co. (1908) the Supreme Court called exclusion "the very essence of the right conferred by the patent." At expiry that power passes to a federal rulebook that lets no one build the design.

A general regulatory power cannot do what a constitutional limit forbids. Resting on the Patent and Takings Clauses, the book asks the Supreme Court for a time-shift, not deregulation: a certified remake of a fully expired design meets its platform year's standards, while new designs meet today's. After its last landing-gear patent expired in 1969, Cessna built new 172 Skyhawks for 17 years to a pre-1965 basis; the Constitution grants that to everyone. The remedy needs no new law and no amendment.

Five years after that ruling, a household buying remakes recovers a third to half of its spending in those categories; one buying none recovers about 15 percent.

This is a history book for ordinary citizens that runs through constitutional law. It traces the bargain from 1624 through 1970 when shortly afterwards, 58% of items became blocked. It takes the injury to households from the $72,495 pickup to the grocery bill. It names the 19 groups the regulatory wall harms most, and an open-book examination lets any reader test the argument with AI. Eleven AI engines identify a constitutional breach. A citizen's playbook shows how to ask an official who already has standing, associations for truckers, farmers, ride-share/taxi-drivers, contractors, restaurants, health-care & healthy-lighting groups, schools, hospitals, a sheriff, a governor, an attorney general, a tribal nation, & others to bring the case; one is enough. Free websites generate letters, collects testimonials and provide information.

The author, co-inventor of an early AI patent, spent nearly three years and over 1300 revisions on the research. He directed AI research tools; attorneys read the drafts, and every legal claim rests on over 90 Supreme Court holdings. He founded the Make American Living Affordable (MALA) movement on X (over 115K members).

Gord Magill, author of "End of the Road: Inside the War on Truckers," wrote the foreword; owner-operators are the strongest plaintiff category the work identifies among 19 identified categories. Gord Magill has discussed his book and the industry twice on The Tucker Carlson Show (also January 2024), on C-SPAN's Washington Journal, on War Room with Stephen K. Bannon Ep. #4726 and on Fox's Ingraham Angle. He writes at Autonomous Truck(er)s and hosts the podcast Voice of GO(r)D. Gord's podcast episode with me, "The Unconstitutional Highway", is the best hour on the book if hearing it suits you better than reading.

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